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[Tennessee Code](#) > [Title 9](#) > [Chapter 21](#) > [Part 2](#) > § 9-21-205

Tennessee Code 9-21-205 – Initial resolution for general obligation bonds

Current as of: 2024 | [Check for updates](#) | [Other versions](#)

(a) Prior to the issuance of general obligation bonds pursuant to this part and part 1 of this chapter, the governing body of the local government shall adopt a resolution (herein referred to as the “initial resolution”) determining to issue the general obligation bonds. The resolution must state in substance:

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Terms Used In Tennessee Code 9-21-205

- Bonds: means bonds or interim certificates issued pending preparation or delivery of definitive bonds of a local government issued pursuant to this chapter. See [Tennessee Code 9-21-105](#)
- Governing body: means the legislative body of any local government of this state or any other authority charged with the governing of the affairs of any local government in this state. See [Tennessee Code 9-21-105](#)
- Local government: means any county, municipality or metropolitan government in this state. See [Tennessee Code 9-21-105](#)
- Mandated project: means a public works project that a local government is required by a court order or other governmental mandate to construct as determined by the local government with the approval of the comptroller of the treasury or the comptroller's designee. See [Tennessee Code 9-21-105](#)

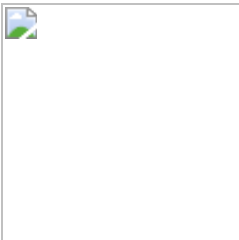
- **Obligation:** An order placed, contract awarded, service received, or similar transaction during a given period that will require payments during the same or a future period.
 - **Public works project:** includes any one (1) or any combination of the following: acquisitions of land for the purpose of providing or preserving open land. See [Tennessee Code 9-21-105](#)
 - **Revenues:** means all fees, rents, tolls, rates, rentals, interest earnings, or other charges received or receivable by the local government from any public works project or enterprise then existing or thereafter to be constructed, including any revenues derived or to be derived by a local government from a lease, agreement or contract with any other local government, local government instrumentality, the state, or a state or federal agency for the use of or in connection with a public works project or enterprise, or all other charges to be levied and collected in connection with and all other income and receipts of whatever kind or character derived by the local government from the operation of any public works project or enterprise or arising from any public works project or enterprise. See [Tennessee Code 9-21-105](#)
 - **State:** means the state of Tennessee. See [Tennessee Code 9-21-105](#)
 - **Taxable property:** means all property subject to ad valorem taxation within the local government, or any portion of the local government, if applicable. See [Tennessee Code 9-21-105](#)
- (1) The amount or maximum amount of general obligation bonds to be issued;
 - (2) The public works project or projects for which the general obligation bonds are to be issued;
 - (3) The rate or maximum rate of interest which the general obligation bonds are to bear; and
 - (4) A brief concise statement that the general obligation bonds will be payable:
- (A) From ad valorem taxes levied upon all the taxable property in the local government or a portion of the local government, if applicable, and, if the latter, then a brief statement or description of such portion of the local government;
- (B) From revenues and, in the event of a deficiency in such revenues, from taxes; or
- (C) From taxes, and additionally secured by a pledge of revenues.
- (b) Notwithstanding subsection (a), the governing body of the local government is not required to adopt an initial resolution for general obligation bonds if the public works project for which the bonds are being issued is a mandated project, and the governing body of a county is not required to adopt an initial resolution for general obligation bonds if the public works project for which the bonds are being issued is a school project.

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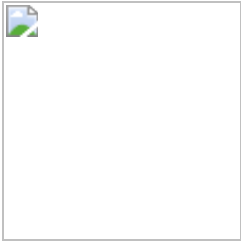


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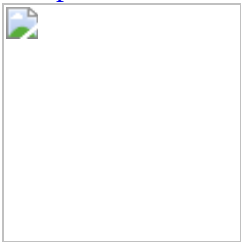


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